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INVESTIGATIONS

The Trump campaign embraces Jan. 6 rioters with money and pardon promises

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HEARD ON ALL THINGS CONSIDERED

By Tom Dreisbach, Noah Caldwell

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Donald Trump launched his latest presidential campaign with a rally in Waco, Texas. At the beginning of the rally, Trump played a song featuring the J6 Prison Choir, made up of defendants in jail on charges related to the Jan. 6, 2021, attack on the U.S. Capitol.

Nathan Howard/AP

Three years after the Jan. 6, 2021, attack on the U.S. Capitol, the future of the

government's massive investigation into the riot, as well as the fate of many rioters themselves, may hinge on this year's presidential election.

In response to the violent assault on the Capitol by supporters of former President Donald Trump, federal agents and prosecutors launched one of the largest investigations in U.S. history. FBI Director Christopher Wray, a Republican appointed by Trump, called the attack an act of "domestic terrorism."

The FBI has now arrested upward of 1,200 people. Prosecutors have secured around 900 guilty pleas or convictions at trial, in cases ranging from breaching the Capitol building to assaulting police, obstructing Congress, bringing a gun onto Capitol grounds and seditious conspiracy.

Trump has repeatedly pledged that if he wins the presidential election in 2024, he will roll back much of that investigation.

An NPR review of social media posts, speeches and interviews found that Trump has made calls to "free" Jan. 6 defendants or promised to issue them presidential pardons more than a dozen times. Trump has said he would issue those pardons on "Day 1" of his presidency, as part of a broader agenda to use presidential power to exact "retribution" against his opponents and deliver "justice" for his supporters.

"We'll be looking very, very seriously at full pardons," Trump told an interviewer in 2022. "I mean full pardons with an apology to many."

"LET THE JANUARY 6 PRISONERS GO," Trump posted on his social media site, Truth Social, in March 2023.

Later that year, Trump reposted a Truth Social post stating, "The cops should be charged and the protesters should be freed."

In the immediate term, a pardon for Jan. 6 defendants would free them from prison as well as other court-ordered supervision, and it would end ongoing prosecutions. The pardon would also allow the hundreds of defendants convicted of felonies to legally own guns again.

Some judges in Jan. 6 cases have imposed sentences that include requirements to seek mental health care and restrictions on viewing "extremist media." A full pardon would lift those requirements too.

Trump would have wide latitude to issue pardons. Scholars have called that presidential power a "near-blank check," unrestrained by other branches of government.

"Legally, there's not much that Congress or the courts can do to stop the president from granting clemency," said Jeffrey Crouch, an assistant professor at American University and author of *The Presidential Pardon Power*.

"Presidents since George Washington have granted clemency to groups of people in volatile situations," Crouch said, noting, for example, the mass pardon of Confederate rebels for treason after the Civil War.

As president, Trump would also have the power to instruct his attorney general to cease all Jan. 6-related investigations.

Jan. 6 defendants and their families have celebrated Trump's promise. Experts on extremism, however, fear that Trump's agenda will embolden extremists and encourage political violence. Police officers who were assaulted in the riot say they continue to receive violent threats from Trump supporters, underscoring the ongoing threat. And President Biden has condemned Trump's plan.

"You can't support law enforcement and call the mob that attacked the police on Jan. 6 in the United States Capitol 'patriots,'" Biden said at an event in 2022.

Biden is set to give a speech on Saturday in Valley Forge, Pa., to mark the anniversary of the Jan. 6 riot, and his campaign says it will focus on Trump's threats to freedom and democracy.

Though Trump is facing four criminal prosecutions, including two indictments related to his effort to overturn the 2020 presidential election, polls have consistently shown that the former president maintains a substantial lead in the Republican presidential primary. He has pleaded not guilty to all charges.

The Trump campaign did not respond to NPR's requests for comment.



Pro-Trump rioters clashed with police during the storming of the U.S. Capitol on Jan. 6, 2021. Approximately 140 police officers were injured in the violence that day, and five people died during the chaos and its immediate aftermath.

Joseph Prezioso/AFP via Getty Images

What Trump has said

Federal prosecutors say they want to use Trump's support for the Jan. 6 rioters against him in court. There is no shortage of events they could cite.

"Trump heading into the 2024 election has decided to go all in as being the pro-Jan. 6 candidate," said Tom Joscelyn, a counterterrorism expert who served as a senior staff member on the congressional select committee that investigated the Jan. 6 attack. "He's gone full steam ahead in praising and in his own way endorsing the Jan. 6 rioters and extremists who attacked the Capitol."

Trump launched the first rally of his 2024 presidential campaign by playing a rendition of "The Star-Spangled Banner" sung by Jan. 6 defendants in jail. He frequently refers to that day as "beautiful" and says his supporters facing criminal charges are "January 6 patriots." He refers to people in prison on Jan. 6-related charges as "hostages" in his stump speech. He has also hosted fundraisers for a controversial nonprofit group that financially supports Jan. 6 defendants, and campaign finance records show that his political action committee donated \$10,000 to the group.

Trump has not specified exactly whom he would pardon or for what crimes.

"I am inclined to pardon many of them," Trump told CNN in 2023. "I can't say for every single one because a couple of them, probably, they got out of control."

At other times, Trump has suggested releasing all defendants. In the days immediately after the Capitol riot, when he was still president, Trump "floated the idea" of a blanket pardon for everyone involved in the events of Jan. 6, according to testimony provided to congressional investigators.

In an interview with NBC News, Trump said he was open to pardoning Enrique Tarrio, the former leader of the Proud Boys extremist group, who was convicted of seditious conspiracy and sentenced to 22 years in prison.

"I'd certainly look at it," Trump said. "And I'd look at all the other people that have suffered, the J6 people."

What Trump has said in support of Jan. 6 defendants and issuing pardons

"They have to release the people that are incarcerated."

– [Trump interview with Fox News](#), July 11, 2021

"If I win, we will treat those people from Jan. 6 fairly. We will treat them fairly. And if it requires pardons, we will give them pardons because they are being treated so unfairly."

– [Trump remarks in Conroe, Texas](#), Jan. 29, 2022

"FREE ALL J-6 PATRIOT
POLITICAL PRISONERS"

– [Image reposted by Trump on Truth Social](#), May 21, 2022

"I will be looking at them very, very seriously for pardons — very, very seriously. They've been treated very unfairly."

– [Trump remarks in Nashville, Tenn.](#), June 17, 2022

"We'll be looking very, very seriously at full pardons because we can't let that happen — what's happened here. And I mean full pardons with an apology — to many, an apology."

– [Trump interview with Wendy Bell Radio](#), Sept. 1, 2022

"Horrible and Unconstitutional treatment of January 6 PATRIOTS"

– [Trump post on Truth Social](#), Jan. 24, 2023

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Special counsel Jack Smith, the independent investigator heading two criminal prosecutions of Trump, has indicated that his team plans to introduce these kinds of comments at Trump's trial as evidence of the former president's intent to subvert the 2020 election through unlawful means.

"The special counsel's office, in their court filings, they're showing that they are tracking Trump's comments about the Jan. 6 rioters, including the Proud Boys and others," said Joscelyn, who was the principal author of the Jan. 6 select

committee's report. "And they're saying this shows his intent all along was to have [the rioters] do what they did."

Smith "wants to show that the president is supportive of the violence that took place on Jan. 6," said Stephen Saltzburg, a law professor at George Washington University.

There's no guarantee U.S. District Judge Tanya Chutkan, who is overseeing the case, will allow prosecutors to present that evidence to the jury.

Introducing Trump's comments as evidence "could have a jury worried not so much about what happened on Jan. 6 and the events leading up to it, but what might happen if he's reelected. And that's not what they're supposed to focus on," Saltzburg said. "I have serious doubts as to whether the District Court will admit any of this evidence."

What experts on extremism say

Experts on extremism and authoritarian politics say Trump pardons could encourage political violence.

Some Jan. 6 defendants have said they regret their actions and have renounced their support for Trump. Others have delved deeper into anti-government extremism, white nationalism and conspiracy theories, including the pro-Trump conspiracy theory QAnon. Dozens of defendants have been locked up in the same unit of the jail in Washington, D.C., and have described a pressure cooker environment that in some cases fueled pro-Trump radicalization. One defendant who stormed the Capitol told NPR that the government had made an "enemy" by arresting him.

Trump issuing pardons to defendants who broke the law — often citing Trump's words as their motivation — could ensure that they remain loyal to him.

"By pardoning an untold number of people who committed violent acts, the likelihood of more violence certainly goes up," said Joscelyn.

Trump's stated promise to act as a "dictator" on Day 1 of his presidency — alongside his description of his political enemies as "vermin," his call for the "termination" of provisions in the Constitution and his claim that unauthorized

immigrants are "poisoning the blood" of the country — have led his critics to fear how he will use presidential power.

And while the pardon represents an act of mercy by the government, New York University historian Ruth Ben-Ghiat said autocratic leaders have also used pardons to amass power and reward followers who committed violence in the name of their cause.

"The purpose of the pardon is both to make people feel they're gonna get away with past crimes," said Ben-Ghiat, "but just as scary is that it's designed to make future violence more possible, because people will feel they won't pay any consequences."

"The only person running for the presidency that cares about Jan. 6"

Trump's support for the "J6 community," as its backers call it, has won him praise with pro-Trump members of Congress, right-wing media and some alleged rioters themselves.

In August 2023, Trump hosted an event to support Jan. 6 defendants at his golf club in Bedminster, New Jersey.

"He is the only person running for the presidency that cares about Jan. 6," said Cynthia Hughes, the leader of the nonprofit Patriot Freedom Project. Though federal law "absolutely" prohibits tax-exempt charities from endorsing candidates for public office, Hughes encouraged people at the event to vote for Trump.

"When you go to the ballot box, don't worry about what you hear in the media. Worry about what's right for this country. And the only thing that's right for this country is this gem," Hughes said as she pointed to Trump standing beside her. A painting depicting Trump carrying a cross was displayed just offstage, an apparent comparison between the former president and Jesus Christ.



Federal prosecutors described Timothy Hale-Cusanelli as a "Nazi sympathizer" who went to work at a naval weapons station with a "Hitler mustache." The nonprofit Patriot Freedom Project launched in response to Hale-Cusanelli's arrest for breaching the Capitol and has received support from Trump.

Department of Justice

Hughes started the group after a longtime family friend — a former Army reservist named Timothy Hale-Cusanelli who is known for making extreme racist and antisemitic comments and once going to work with a "Hitler mustache," according to federal prosecutors — was arrested and ultimately convicted for breaching the Capitol, obstructing Congress and disorderly conduct. The nonprofit group raises money to support Jan. 6 defendants, and its leaders say they have met with Trump several times. In 2022, Trump even featured Hughes at a campaign rally. The group did not respond to NPR's request for comment.

On a street outside the Washington, D.C., jail, where some Jan. 6 defendants are held pending trial, a small group of activists has held a nightly vigil led by the mother of Ashli Babbitt, who was shot and killed while trying to breach a barricaded door during the Capitol riot. Each night, activists take calls from Jan. 6 defendants in jail and then amplify them on a loudspeaker.

On one recent evening, activists led a call-and-response "roll call" of detained Jan. 6 defendants. The group replied "hero" after each name.

Among the people the group lauded as "heroes" were Andrew Taake, who pleaded guilty to assaulting police with bear spray and a whip; Enrique Tarrio, the former leader of the Proud Boys, who was convicted of seditious conspiracy; and Curtis Tate, who pleaded not guilty to assaulting police with a metal baton.

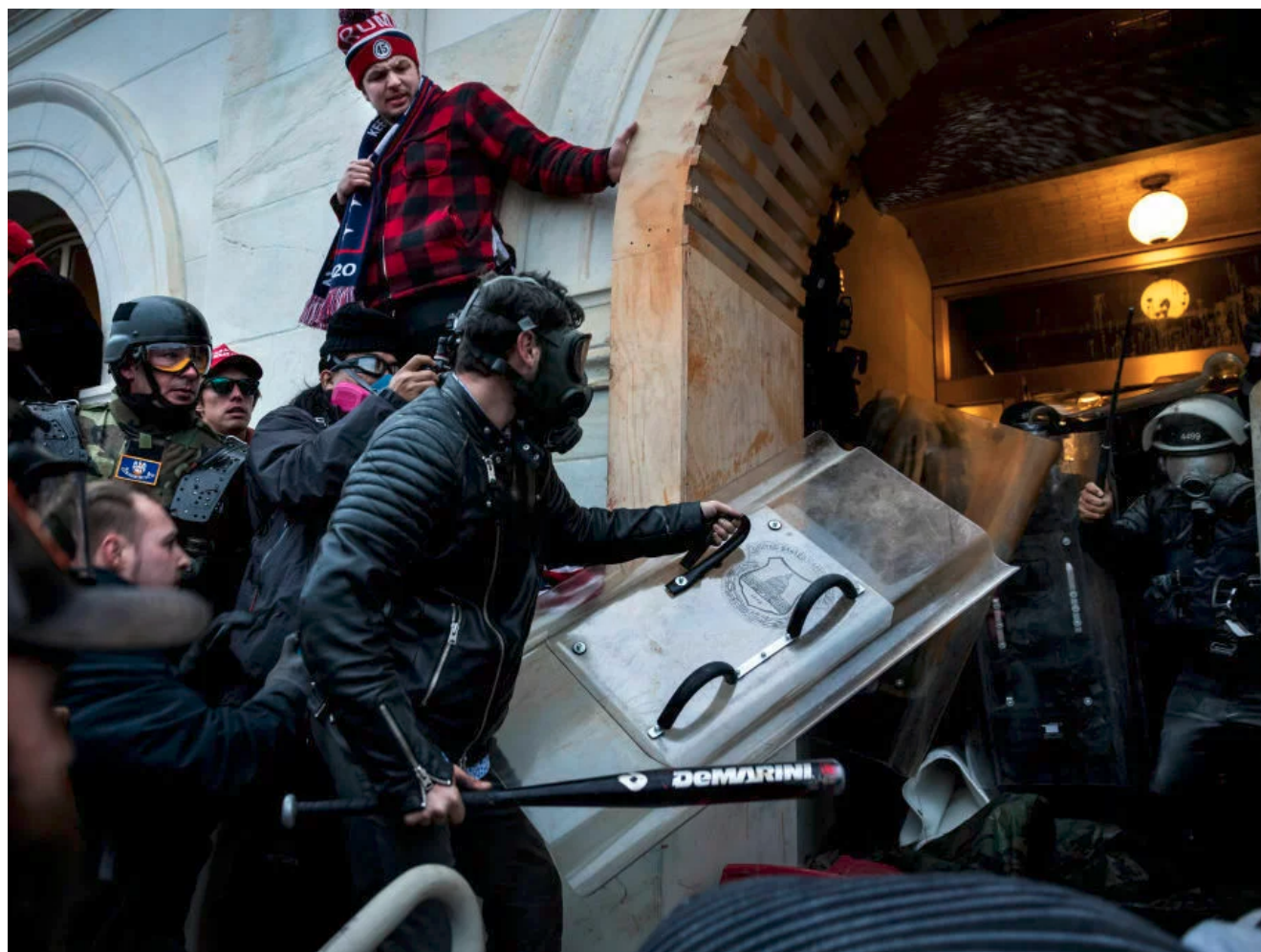
In September 2022, Trump himself called in to the vigil to offer support and said it was "an honor to be with you." Trump told the assembled crowd that "it's a terrible thing that has happened to a lot of people that are being treated very, very unfairly" and added, "We're with you."

Nicole Reffitt is one of the vigil organizers. Her husband, Guy Reffitt, was the first person convicted at trial for charges from the riot. He is serving a more than seven-year prison sentence after being convicted of bringing a gun onto Capitol grounds, obstructing Congress and threatening his children if they turned him in to the FBI.

Nicole Reffitt told NPR that Trump's promise to issue pardons "does give a lot of Jan. 6-ers hope." But she said she thinks Trump should look at individual cases.

"I don't believe everyone should just get off," Reffitt said, including her husband. "I understand Guy should be charged for what he did that day." Guy Reffitt did not commit violence on Jan. 6 and did not enter the Capitol building.

Nicole Reffitt did argue that the Justice Department has "overcharged" some people.



Federal prosecutors allege that the man in the black jacket is Jacob Lang and that he used a bat and stolen police shield to assault police guarding the Capitol. Lang pleaded not guilty and is still awaiting trial. He has praised Trump for promising to pardon Jan. 6 defendants and said he hopes Trump issues a blanket pardon for everyone facing charges.

Brent Stirton/Getty Images

Inside the jail, Jacob Lang has a different perspective.

Lang pleaded not guilty to allegations that he "repeatedly" assaulted police with a bat and shield during the riot over the course of hours. Prosecutors allege that after the riot, Lang said on an Instagram livestream that the next step was "guns ... that's it," adding, "The First Amendment didn't work, we pull out the Second."

Lang has been detained while his case works its way through the courts, but that has not stopped him from making frequent appearances in right-wing media through jailhouse phone calls and even his own podcast. He has said he is "proud" of what he did on Jan. 6 and has argued that violence against police that day was justified as an act of self-defense.

Far-right Rep. Marjorie Taylor Greene, R-Ga., and U.S. Senate candidate Kari Lake of Arizona, both close Trump allies, have called attention to Lang's case to argue that the Biden administration is persecuting Trump supporters.

In a call to NPR, Lang said he "loves" Trump, supports Trump's reelection and praised Trump's promise to issue pardons.

"It's a beautiful pledge," said Lang.

Unlike Reffitt, he hopes Trump will issue a "blanket pardon" regardless of the charges, because he believes Trump supporters have been treated unfairly compared with other rioters.

"No Jan. 6-er left behind," Lang said. "Bring us all home, 47, Donald Trump. Bring us all home." (Trump will be the 47th U.S. president if he wins the 2024 election.)



Daniel Hodges, a police officer in Washington, D.C.'s Metropolitan Police Department, was assaulted by rioters on Jan. 6, 2021. Federal prosecutors introduced video evidence of his assault in court, and Hodges testified against

the men who attacked him.

U.S. Department of Justice

"A lack of consequences emboldens criminals"

Among the approximately 140 police officers assaulted while protecting the Capitol is Metropolitan Police Department officer Daniel Hodges. One of the most widely viewed videos of the riot shows rioters crushing Hodges in a doorway to the Capitol.

"I was assaulted many times throughout the day," Hodges told NPR. "I was beaten, punched, kicked, pushed, beaten with my own baton in the head, crushed with police shields, experienced O.C. spray or pepper spray." At one point, he said, "someone tried to gouge out one of my eyes."

Hodges said the physical scars from that day have healed, but he still experiences the mental trauma of that day.

"Jan. 6 is still a huge part of my life," he said.

Hodges, who said he was speaking only for himself and not on behalf of the police department, has testified at two criminal trials stemming from the riot. He has also offered testimony about his experience as part of the legal effort that removed Trump from the presidential ballot in Colorado. Trump has appealed that ruling.

"It's a very intense experience when you're testifying about it, and it all sort of comes rushing back," Hodges said. "So many Americans were trying to essentially overthrow the United States government, whether they admit it or not. It's overwhelming emotionally, because you never thought you'd be in those circumstances."



Metropolitan Police Department officer Daniel Hodges is sworn in before the House select committee hearing on the Jan. 6, 2021, attack on the U.S. Capitol.

Chip Somodevilla/AP

That feeling has only been intensified by what he called the "information war" around the Capitol riot, with Trump, Republicans in Congress and right-wing media outlets all seeking to downplay or even deny the violence of that day.

"I feel like I have a moral obligation to continue fighting the disinformation and the lies that are coming out," Hodges said.

Since speaking out, Hodges has also been subjected to a torrent of online threats from Trump supporters. Hodges said people have sent him messages telling him to kill himself, along with explicit "snuff videos" of suicides.

He said he thinks a presidential pardon for the rioters — including potentially the men convicted of assaulting him — would serve only to validate the violence of that day.

"Typically a lack of consequences emboldens criminals," he said. "I see that in the community that I police, and there's no reason not to believe that it wouldn't have the same effect on people who are convicted for offenses at the Capitol on Jan. 6."

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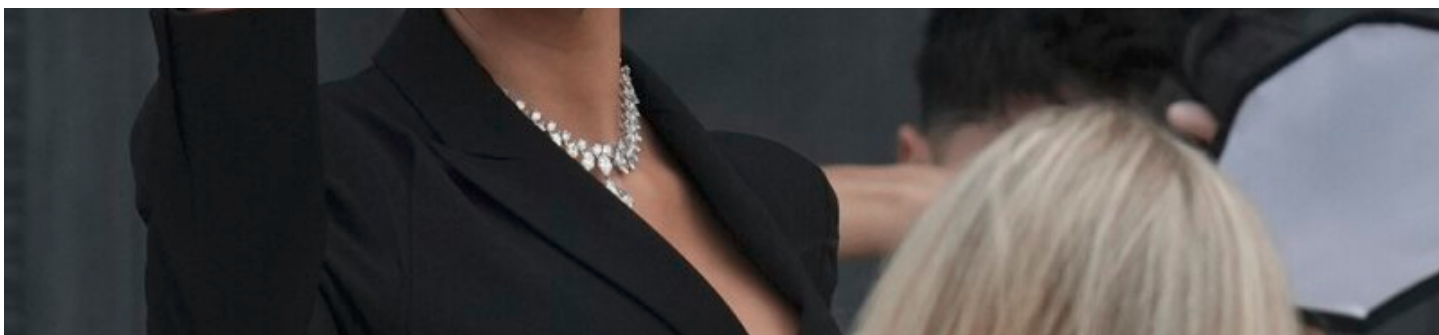
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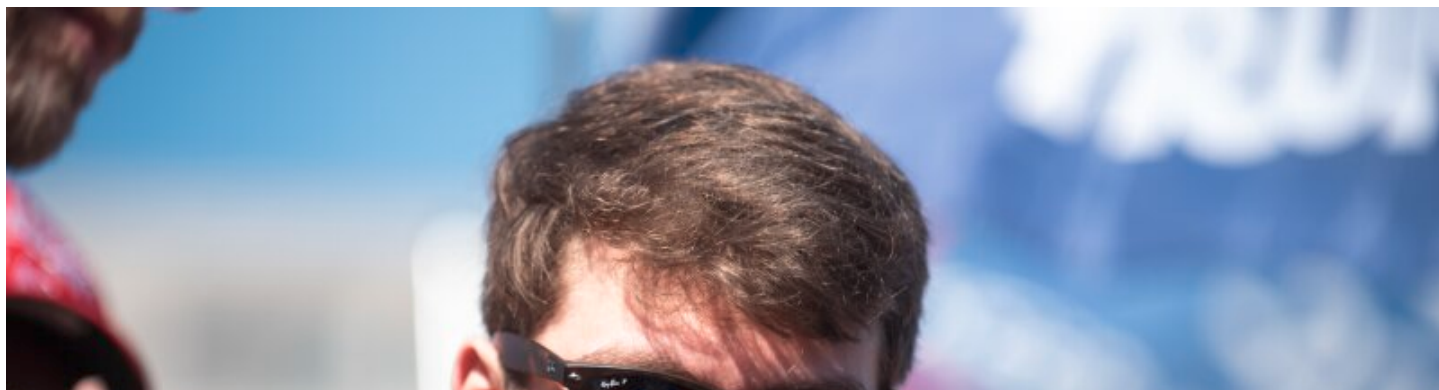
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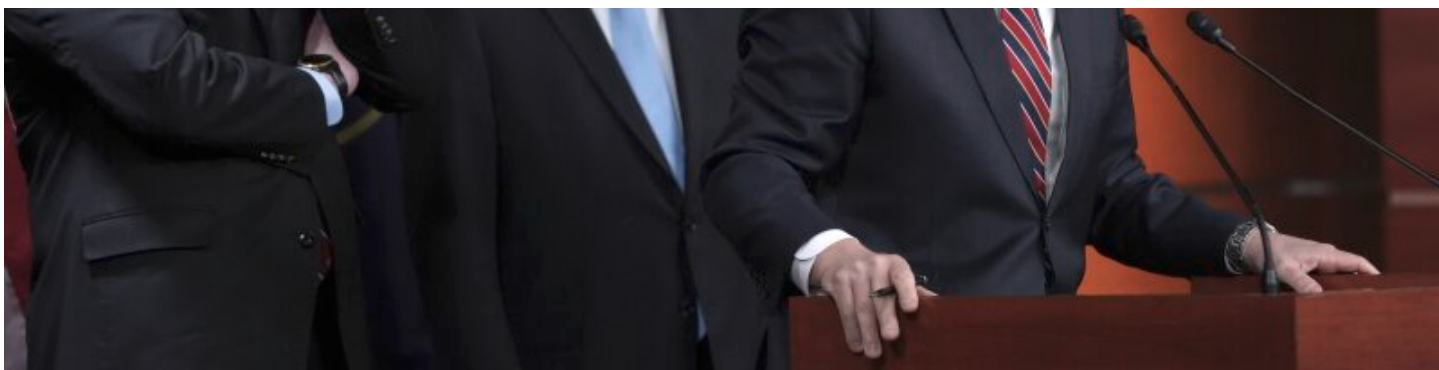
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A group of five people standing together. On the left, a man in a white shirt is speaking into a microphone and gesturing with his right hand. Next to him is a young woman in a white lace dress, followed by a young man in a white shirt, a woman in a blue dress, and a man in a white shirt on the far right. They are all looking towards the left.



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